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April 8, 2025

ENGROSSED HOUSE
BILL NO. 1940

By: Sterling of the House

and

Stanley of the Senate

An Act relating to charter schools; amending 70 O.S. 2021, Section 3-132, as last amended by Section 5, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-132), which relates to sponsorship of charter schools; adding county to certain sponsor; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-132, as last amended by Section 5, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2024, Section 3-132), is amended to read as follows:

Section 3-132. A. The Oklahoma Charter Schools Act shall apply only to charter schools formed and operated under the provisions of the act. Charter schools shall be sponsored only as follows:

1. By any school district located in this state, provided such charter school shall only be located within the geographical boundaries of the sponsoring district and subject to the restrictions of Section 3-145.6 of this title;

1 2. By an accredited comprehensive, regional, or two-year
2 institution that is a member of The Oklahoma State System of Higher
3 Education or by a private institution of higher learning located
4 within this state that is accredited pursuant to Section 4103 of
5 this title;

6 3. By a federally recognized Indian tribe, operating a high
7 school under the authority of the Bureau of Indian Affairs as of
8 November 1, 2010, if the charter school is for the purpose of
9 demonstrating native language immersion instruction, and is located
10 within its former reservation or treaty area boundaries. For
11 purposes of this paragraph, native language immersion instruction
12 shall require that educational instruction and other activities
13 conducted at the school site are primarily conducted in the native
14 language;

15 4. Until June 30, 2023, by the State Board of Education and
16 beginning July 1, 2024, by the Statewide Charter School Board when
17 the applicant of the charter school is the Office of Juvenile
18 Affairs or the applicant has a contract with the Office of Juvenile
19 Affairs and the charter school is for the purpose of providing
20 education services to youth in the custody or supervision of the
21 state or county;

22 5. By a federally recognized Indian tribe only when the charter
23 school is located within the former reservation or treaty area
24 boundaries of the tribe on property held in trust by the Bureau of

1 Indian Affairs of the United States Department of the Interior for
2 the benefit of the tribe; or

3 6. By the Statewide Charter School Board. In counties with a
4 population of fewer than five hundred thousand (500,000), according
5 to the latest Federal Decennial Census, the Statewide Charter School
6 Board shall not sponsor more than five new charter schools each
7 year. Existing charter schools sponsored by the Statewide Charter
8 School Board shall not apply to the limits prescribed by this
9 paragraph.

10 B. An eligible non-school-district sponsor shall give priority
11 to opening charter schools that serve at-risk student populations or
12 students from low-performing traditional public schools.

13 C. An eligible non-school-district sponsor shall give priority
14 to applicants that have demonstrated a record of operating at least
15 one school or similar program that demonstrates academic success and
16 organizational viability and serves student populations similar to
17 those the proposed charter school seeks to serve. In assessing the
18 potential for quality replication of a charter school, a sponsor
19 shall consider the following factors before approving a new site or
20 school:

21 1. Evidence of a strong and reliable record of academic success
22 based primarily on student performance data, as well as other viable
23 indicators including financial and operational success;

24 2. A sound, detailed, and well-supported growth plan;

1 3. Evidence of the ability to transfer successful practices to
2 a potentially different context that includes reproducing critical
3 cultural, organizational, and instructional characteristics;

4 4. Any management organization involved in a potential
5 replication is fully vetted, and the academic, financial, and
6 operational records of the schools it operates are found to be
7 satisfactory;

8 5. Evidence the program seeking to be replicated has the
9 capacity to do so successfully without diminishing or putting at
10 risk its current operations; and

11 6. A financial structure that ensures that funds attributable
12 to each charter school within a network and required by law to be
13 utilized by a school remain with and are used to benefit that
14 school.

15 SECTION 2. This act shall become effective July 1, 2025.

16 SECTION 3. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

20 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
21 April 8, 2025 - DO PASS
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